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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
14/523,595	10/24/2014	Thomas Jesch	120691-001UT1	1058

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SUITE 2200
SAN DIEGO, CA 92101

EXAMINER

CLARK, AMY LYNN

ART UNIT	PAPER NUMBER
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1655

NOTIFICATION DATE	DELIVERY MODE
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06/22/2017

ELECTRONIC

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

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Office Action Summary	Application No. 14/523,595	Applicant(s) JESCH ET AL.	
	Examiner Amy L. Clark	Art Unit 1655	AIA (First Inventor to File) Status Yes

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTHS FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

- 1) ☒ Responsive to communication(s) filed on 4/3/2017.
☐ A declaration(s)/affidavit(s) under **37 CFR 1.130(b)** was/were filed on ____.
- 2a) ☐ This action is **FINAL**. 2b) ☒ This action is non-final.
- 3) ☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on ____; the restriction requirement and election have been incorporated into this action.
- 4) ☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims*

- 5) ☒ Claim(s) 1-19 is/are pending in the application.
5a) Of the above claim(s) 12-14 is/are withdrawn from consideration.
- 6) ☐ Claim(s) ____ is/are allowed.
- 7) ☒ Claim(s) 1-11 and 15-19 is/are rejected.
- 8) ☐ Claim(s) ____ is/are objected to.
- 9) ☐ Claim(s) ____ are subject to restriction and/or election requirement.

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to PPHfeedback@uspto.gov.

Application Papers

- 10) ☒ The specification is objected to by the Examiner.
- 11) ☐ The drawing(s) filed on ____ is/are: a) ☐ accepted or b) ☐ objected to by the Examiner.
Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).
Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

Priority under 35 U.S.C. § 119

- 12) ☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

Certified copies:

- a) ☐ All b) ☐ Some** c) ☐ None of the:
1. ☐ Certified copies of the priority documents have been received.
 2. ☐ Certified copies of the priority documents have been received in Application No. ____.
 3. ☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

** See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

- | | |
|--|---|
| 1) ☒ Notice of References Cited (PTO-892) | 3) ☐ Interview Summary (PTO-413)
Paper No(s)/Mail Date. ____. |
| 2) ☒ Information Disclosure Statement(s) (PTO/SB/08a and/or PTO/SB/08b)
Paper No(s)/Mail Date ____. | 4) ☐ Other: ____. |

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The present application, filed on or after March 16, 2013, is being examined under the first inventor to file provisions of the AIA.

DETAILED ACTION

Election/Restrictions

Applicant's election with traverse of Group I, claims 1-11 and 15-19 in the reply filed on 4/3/2017 is acknowledged. The traversal is on the ground(s) that the inventions are patentably distinct and in condition for allowance. This is not found persuasive because the claims are drawn to distinct inventions and the product can be used as a nutritional supplement. Therefore, the inventions are independent and distinct and it would be a serious search burden to examine them together.

The requirement is still deemed proper and is therefore made FINAL.

Claims 12-14 are withdrawn from further consideration pursuant to 37 CFR 1.142(b), as being drawn to a nonelected invention, there being no allowable generic or linking claim. Applicant timely traversed the restriction (election) requirement in the reply filed on 4/3/2017.

Claims 1-11 and 15-19 are currently under examination.

Specification

Applicant is reminded of the proper content of an abstract of the disclosure.

A patent abstract is a concise statement of the technical disclosure of the patent and should include that which is new in the art to which the invention pertains. The abstract should not refer to purported merits or speculative applications of the invention and should not compare the invention with the prior art.

If the patent is of a basic nature, the entire technical disclosure may be new in the art, and the abstract should be directed to the entire disclosure. If the patent is in the nature of an improvement in an old apparatus, process, product, or composition, the abstract should include the technical disclosure of

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the improvement. The abstract should also mention by way of example any preferred modifications or alternatives.

Where applicable, the abstract should include the following: (1) if a machine or apparatus, its organization and operation; (2) if an article, its method of making; (3) if a chemical compound, its identity and use; (4) if a mixture, its ingredients; (5) if a process, the steps.

Extensive mechanical and design details of an apparatus should not be included in the abstract. The abstract should be in narrative form and generally limited to a single paragraph within the range of 50 to 150 words in length.

See MPEP § 608.01(b) for guidelines for the preparation of patent abstracts.

Applicant is reminded of the proper language and format for an abstract of the disclosure.

The abstract should be in narrative form and generally limited to a single paragraph on a separate sheet within the range of 50 to 150 words in length. The abstract should describe the disclosure sufficiently to assist readers in deciding whether there is a need for consulting the full patent text for details.

The language should be clear and concise and should not repeat information given in the title. It should avoid using phrases which can be implied, such as, "The disclosure concerns," "The disclosure defined by this invention," "The disclosure describes," etc. In addition, the form and legal phraseology often used in patent claims, such as "means" and "said," should be avoided.

The abstract of the disclosure is objected to because the specification does not accurately reflect the composition of the invention. Correction is required. See MPEP § 608.01(b).

Claim Objections

Claims 2-11 and 15-19 are objected to because of the following informalities: the term "Claim" is capitalized and should be lower case. Appropriate correction is required.

Claim Rejections - 35 USC § 112

The following is a quotation of 35 U.S.C. 112(b):

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(b) CONCLUSION.—The specification shall conclude with one or more claims particularly pointing out and distinctly claiming the subject matter which the inventor or a joint inventor regards as the invention.

The following is a quotation of 35 U.S.C. 112 (pre-AIA), second paragraph:
The specification shall conclude with one or more claims particularly pointing out and distinctly claiming the subject matter which the applicant regards as his invention.

Claims 1-11 and 15-19 are rejected under 35 U.S.C. 112(b) or 35 U.S.C. 112 (pre-AIA), second paragraph, as being indefinite for failing to particularly point out and distinctly claim the subject matter which the inventor or a joint inventor, or for pre-AIA the applicant regards as the invention.

The metes and bounds of claim 1 are rendered uncertain by the phrase “Plectranthus amboinicus liquid” and “aloe vera liquid” because it is not clear what Applicant regards as Plectranthus amboinicus liquid” and “aloe vera liquid”. Is Applicant claiming a solvent extract? If so, what type of solvent? Is Applicant claiming a resin or exudate?. The lack of clarity renders the claims indefinite since the resulting claims do not clearly set forth the metes and bounds of the patent protection desired.

The metes and bounds of claim 2 are rendered uncertain by the phrase “Plectranthus tomentosa liquid” because it is not clear what Applicant regards as “Plectranthus tomentosa liquid”. Is Applicant claiming a solvent extract? If so, what type of solvent? Is Applicant claiming a resin or exudate? The lack of clarity renders the claims indefinite since the resulting claims do not clearly set forth the metes and bounds of the patent protection desired.

Claim 10 contains the trademark/trade names “Euxyl ®” and “Spectrastat ®”. Where a trademark or trade name is used in a claim as a limitation to identify or describe a particular material or product, the claim does not comply with the requirements of 35 U.S.C. 112, second paragraph. See *Ex parte Simpson*, 218 USPQ 1020 (Bd. App. 1982). The claim scope is uncertain since the trademark or trade name cannot be used properly to identify any particular material or product. A trademark or trade name is used to identify a source of goods, and not the goods themselves. Thus, a trademark or trade name does not identify or describe the goods associated with the trademark or trade name. In the present case, it is unclear what the trademark/trade name is used to identify/describe, therefore, the identification/description is indefinite.

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The metes and bounds of claim 11 are rendered uncertain by the phrase “any of Claims 1” because it is not clear what Applicant regards as “Claims 1”. Is Applicant claiming that there is more than one claim 1 or is intending a multiple dependent claim? The lack of clarity renders the claims indefinite since the resulting claims do not clearly set forth the metes and bounds of the patent protection desired.

Claim Rejections - 35 USC § 101

35 U.S.C. 101 reads as follows:

Whoever invents or discovers any new and useful process, machine, manufacture, or composition of matter, or any new and useful improvement thereof, may obtain a patent therefor, subject to the conditions and requirements of this title.

Claims 1-11 and 15-19 are rejected under 35 U.S.C. 101 because the claimed invention is directed to a judicial exception (i.e., a law of nature, a natural phenomenon, or an abstract idea) without significantly more.

Effective December 16, 2014, subject matter eligibility determinations under 35 U.S.C. § 101 follow the procedure explained in the Federal Register notice titled **2014 Interim Guidance on Patent Subject Matter Eligibility** (79 FR 74618), which is found at: <http://www.gpo.gov/fdsys/pkg/FR-2014-12-16/pdf/2014-29414.pdf>. Applicants are kindly asked to review this guidance.

The statutory categories of invention under 35 U.S.C. 101 are processes, machines, manufactures, and compositions of matter. However, certain members of these categories constitute judicial exceptions, i.e., the courts have determined that these entities are not patentable subject matter. These judicial exceptions include abstract ideas, laws of nature, and natural phenomena. The Office released guidance on December 16, 2014 for the examination of claims reciting natural products under 35 U.S.C. 101 in light of the recent Supreme Court decisions in *Association for Molecular Pathology v. Myriad Genetics, Inc.* (569 U.S. ___, 133 S. Ct. 2107, 2116, 106 USPQ2d 1972 (2013)) and *Mayo Collaborative Services v. Prometheus Laboratories* (566 U.S. ___, 132 S. Ct. 1289, 101 USPQ2d 1961 (2012)), *Diamond v. Chakrabarty*, 447 U.S. 303 (1980)) and *Funk Brothers Seed Co. v. Kalo Inoculant Co.* - 333 U.S. 127 (1948)). (*inter alia*).

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Claim 1 is drawn to a composition comprising *Plectranthus amboinicus* liquid extract and an Aloe liquid extract. Claim 2 is drawn to the composition of Claim 1, further comprising *Plectranthus tomentosa* liquid extract. Claim 3 is drawn to the composition of Claim 1, wherein the *Plectranthus amboinicus* liquid is present in an amount of about 80% by volume. Claim 4 is drawn to the composition of Claim 2, wherein the *Plectranthus tomentosa* liquid is present in an amount of about 20% by volume. Claim 5 is drawn to the composition of Claim 1, wherein the Aloe liquid is present in an amount of about 20% by volume. Claim 6 is drawn to the composition of Claim 2, wherein the *Plectranthus tomentosa* liquid is present in an amount of about 5% by volume and the Aloe liquid is present in an amount of about 15% by volume. Claim 7 is drawn to the composition of Claim 1, wherein the Aloe liquid extract is *Aloe barbadensis* (Vera). Claim 8 is drawn to the composition of Claim 1 comprising 70-90% *Plectranthus amboinicus*, 30-5% of an Aloe liquid extract, and 30-5% of *Plectranthus tomentosa* by volume. Claim 9 is drawn to the composition of Claim 1, further comprising a preservative in an amount of less than about 2% by volume. Claim 10 is drawn to the composition of Claim 9, wherein the preservative is Euxyl®, Spectrastat®, or citric acid. Claim 11 is drawn to the composition of Claim 1 in a topical dosage form. Claim 15 is drawn to the composition of Claim 1, which is used as a conditioner for cosmetics. Claim 16 is drawn to the composition of Claim 1, which is used as an ameliorant for urinary incontinence products. Claim 17 is drawn to the composition of Claim 1, which is used as a therapeutic agent for vaporizers and vaporizing products. Claim 18 is drawn to the composition of Claim 1, wherein the *Plectranthus amboinicus* liquid is present in an amount of about 80% by volume, the *Aloe barbadensis* is present in an amount of about 18% by volume and *Plectranthus tomentosa* is present in an amount of about 2% by volume. Claim 19 is drawn to the composition of Claim 18, which is used in combination with a food preserver and sweetener to create a nutritional beverage or tea.

These compositions are not markedly different from their closest naturally occurring counterpart because there is no indication that the *Plectranthus amboinicus* liquid extract and an Aloe liquid extract that comprise the claimed compositions has any characteristics that are different from the naturally occurring *Plectranthus amboinicus* liquid extract in *Plectranthus amboinicus* plants and an Aloe liquid extract in aloe plants. There is no indication that combining the *Plectranthus amboinicus* liquid extract and

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an Aloe liquid extract provides any different activity than the naturally occurring activity of the individual ingredients on their own. Regarding claims 2, 4, 6, 8 and 18, there is no indication that the addition of *Plectranthus tomentosa* liquid extract in an undisclosed amount and in the concentration claimed provide any different activity than the *Plectranthus tomentosa* liquid extract on its own. Regarding claims 9 and 10, there is no indication that the addition of a preservative in the concentration claimed provide any different activity than the preservative on its own.

The claimed mixtures, as a whole, do not display markedly different characteristics compared to the closest naturally occurring counterpart [the *Plectranthus amboinicus* liquid extract and an Aloe liquid extract are all present in nature and are all effective for treating wounds]. The combination of the *Plectranthus amboinicus* liquid extract and an Aloe liquid extract does not display markedly different characteristics, nor does it amount to significantly more than the exceptions. Mixing the the *Plectranthus amboinicus* liquid extract and an Aloe liquid extract together and with the additionally claimed ingredients does not markedly change the characteristics of any component of the composition, since the components continue to have the same properties in the mixture as they had alone (the *Plectranthus amboinicus* liquid extract and an Aloe liquid extract both continue to actively treat wounds). The recitation of specific amounts of the ingredients does not affect this analysis because it is well known and routine in the art to mix specific amounts of active ingredients with additional ingredients. Therefore, the claim is not meaningfully limited and does not amount to significantly more than each product of nature by itself. Finally, the claimed mixture is like the novel bacterial mixture of Funk Brothers, which was held ineligible because each species of bacteria in the mixture (like each component in the instantly claimed mixture) continued to have “the same effect it always had”, *i.e.*, it lacked markedly different characteristics. *Funk Brothers Seed Co. v. Kalo Inoculant Co.*, 333 U.S. 127, 131 (1948), discussed in *Myriad Genetics*, 133 S. Ct. at 2117. While not discussed in the opinion, it is noted that several of the claims held ineligible in *Funk Brothers* recited specific amounts of the bacterial species in the mixture, *e.g.*, claims 6, 7 and 13. *Funk Brothers*, 333 U.S. at 128 n.1.

For the reasons described above, the claimed compositions are not markedly different from their closest naturally occurring counterparts and thus are product of nature judicial exceptions.

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The claims do not include additional elements that are sufficient to amount to significantly more than the judicial exception because the claims do not recite any additional elements beyond the claimed compositions themselves. Therefore, the claims do not recite something significantly more than a judicial exception and are thus deemed patent ineligible subject matter.

Claim Rejections - 35 USC § 102

In the event the determination of the status of the application as subject to AIA 35 U.S.C. 102 and 103 (or as subject to pre-AIA 35 U.S.C. 102 and 103) is incorrect, any correction of the statutory basis for the rejection will not be considered a new ground of rejection if the prior art relied upon, and the rationale supporting the rejection, would be the same under either status.

The following is a quotation of the appropriate paragraphs of 35 U.S.C. 102 that form the basis for the rejections under this section made in this Office action:

A person shall be entitled to a patent unless –

(a)(1) the claimed invention was patented, described in a printed publication, or in public use, on sale or otherwise available to the public before the effective filing date of the claimed invention.

Claims 1, 7, 11 and 15-17 is/are rejected under 35 U.S.C. 102(b) as being anticipated by Kandasamy Mudaliar (U).

Kandasamy Mudaliar teaches a composition comprising Aloe barbadensis and Coleus ambionicus (which is synonymous with Plectranthus amboinicus), wherein the composition is formulated into an oil by boiling pastes of Aloe barbadensis and Coleus ambionicus with oil (which reads on liquid extract of Aloe barbadensis and Coleus ambionicus). Kandasamy Mudaliar further teaches that the composition is externally applied (which reads on topical).

It is noted that the reference does not teach that the composition can be used in the manner instantly claimed, however, the intended use of the claimed composition does not patentably distinguish the composition, *per se*, since such undisclosed use is inherent in the reference composition. In order to be limiting, the intended use must create a structural difference between the claimed composition and the

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prior art composition. In the instant case, the intended use does not create a structural difference, thus the intended use is not limiting.

"[T]he discovery of a previously unappreciated property of a prior art composition, or of a scientific explanation for the prior art's functioning, does not render the old composition patentably new to the discoverer." *Atlas Powder Co. v. Ireco Inc.*, 190 F.3d 1342, 1347, 51 USPQ2d 1943, 1947 (Fed. Cir. 1999). Thus the claiming of a new use, new function or unknown property which is inherently present in the prior art does not necessarily make the claim patentable. *In re Best*, 562 F.2d 1252, 1254, 195 USPQ 430, 433 (CCPA 1977). See also MPEP § 2112.01 with regard to inherency and product-by-process claims.

Therefore, the reference anticipates the instantly claimed invention.

Claim Rejections - 35 USC § 103

In the event the determination of the status of the application as subject to AIA 35 U.S.C. 102 and 103 (or as subject to pre-AIA 35 U.S.C. 102 and 103) is incorrect, any correction of the statutory basis for the rejection will not be considered a new ground of rejection if the prior art relied upon, and the rationale supporting the rejection, would be the same under either status.

The following is a quotation of 35 U.S.C. 103 which forms the basis for all obviousness rejections set forth in this Office action:

A patent for a claimed invention may not be obtained, notwithstanding that the claimed invention is not identically disclosed as set forth in section 102, if the differences between the claimed invention and the prior art are such that the claimed invention as a whole would have been obvious before the effective filing date of the claimed invention to a person having ordinary skill in the art to which the claimed invention pertains. Patentability shall not be negated by the manner in which the invention was made.

The factual inquiries set forth in *Graham v. John Deere Co.*, 383 U.S. 1, 148 USPQ 459 (1966), that are applied for establishing a background for determining obviousness under 35 U.S.C. 103 are summarized as follows:

1. Determining the scope and contents of the prior art.
2. Ascertaining the differences between the prior art and the claims at issue.

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3. Resolving the level of ordinary skill in the pertinent art.

4. Considering objective evidence present in the application indicating obviousness or nonobviousness.

This application currently names joint inventors. In considering patentability of the claims the examiner presumes that the subject matter of the various claims was commonly owned as of the effective filing date of the claimed invention(s) absent any evidence to the contrary. Applicant is advised of the obligation under 37 CFR 1.56 to point out the inventor and effective filing dates of each claim that was not commonly owned as of the effective filing date of the later invention in order for the examiner to consider the applicability of 35 U.S.C. 102(b)(2)(C) for any potential 35 U.S.C. 102(a)(2) prior art against the later invention.

Claims 1-11 and 15-19 are rejected under 35 U.S.C. 103 as being unpatentable over Gurib-Fakim (V), in view of Berryulia (W), Houzz (X) and Rade (N, abstract only).

Gurib-Fakim teaches that cold symptoms are attenuated by taking a decoction of *Plectranthus amboinicus* leaves (which reads on a liquid extract).

Berryulia teaches a remedy for coughs and colds is a beverage composition comprising juice of aloe leaf (which reads on liquid extract) and honey (which reads on a sweetener).

Houzz teaches Vicks plant (which is synonymous with *Plectranthus tomentosa*- See "jimshy" on page 2) is used as an infusion to treat colds (which reads on a drink and liquid) and that rubbing the leaves and inhaling clears the sinuses immediately (See "Ragdoll(8b Fl.)" on page 3).

Rade teaches a lozenge for preventing colds comprising aloe vera extract and citric acid.

It is noted that the reference does not teach that the composition can be used in the manner instantly claimed, however, the intended use of the claimed composition does not patentably distinguish the composition, *per se*, since such undisclosed use is inherent in the reference composition. In order to be limiting, the intended use must create a structural difference between the claimed composition and the prior art composition. In the instant case, the intended use does not create a structural difference, thus the intended use is not limiting.

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"[T]he discovery of a previously unappreciated property of a prior art composition, or of a scientific explanation for the prior art's functioning, does not render the old composition patentably new to the discoverer." *Atlas Powder Co. v. Ireco Inc.*, 190 F.3d 1342, 1347, 51 USPQ2d 1943, 1947 (Fed. Cir. 1999). Thus the claiming of a new use, new function or unknown property which is inherently present in the prior art does not necessarily make the claim patentable. *In re Best*, 562 F.2d 1252, 1254, 195 USPQ 430, 433 (CCPA 1977). See also MPEP § 2112.01 with regard to inherency and product-by-process claims.

It would have been obvious to one of ordinary skill in the art to prepare a composition for treating colds by combining a decoction of *Plectranthus amboinicus* leaves with aloe vera juice, honey, *Plectranthus tomentosa* infusion, and citric acid. A person of ordinary skill in the art would have understood to include in a formulation for treating colds a decoction of *Plectranthus amboinicus* leaves with aloe vera juice, honey, *Plectranthus tomentosa* infusion, and citric acid because these ingredients can be used to treat colds. A person of ordinary skill in the art would have understood to combine a decoction of *Plectranthus amboinicus* leaves with aloe vera juice, honey, *Plectranthus tomentosa* infusion, and citric acid to provide an effective cold treatment. A person of ordinary skill in the art would have understood to adjust the amount of *Plectranthus amboinicus* leaves with aloe vera juice, honey, *Plectranthus tomentosa* infusion within the composition since one of ordinary skill in the art would have understood to include and adjust the amount of *Plectranthus amboinicus* leaves with aloe vera juice, honey, *Plectranthus tomentosa* infusion in order to form a safe and effective formulation for treating colds with expectation of success. A person of ordinary skill in the art would have understood to use a decoction of *Plectranthus amboinicus* leaves with aloe vera juice, honey, *Plectranthus tomentosa* infusion, and citric acid to provide a cold formulation. The skilled artisan would have understood that depending on the mode of administration that the composition can be modified to a suitable mode of delivery. A person of ordinary skill in the art would have understood to combine a decoction of *Plectranthus amboinicus* leaves with aloe vera juice, honey, *Plectranthus tomentosa* infusion, and citric acid to provide a safe and effective cold treatment formulation. Therefore, the skilled artisan would have

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been motivated to use a decoction of *Plectranthus amboinicus* leaves with aloe vera juice, honey, *Plectranthus tomentosa* infusion, and citric acid to provide an effective cold treatment formulation.

From the teachings of the reference, it is apparent that one of ordinary skill in the art would have had reasonable expectation of success in producing the claimed invention. Therefore, the invention as a whole is *prima facie* obvious to one of ordinary skill in the art at the time the invention was made, as evidenced by the references, especially in the absence of evidence to the contrary.

Conclusion

No claims are allowed.

Any inquiry concerning this communication or earlier communications from the examiner should be directed to Amy L. Clark whose telephone number is (571)272-1310. The examiner can normally be reached on Monday to Friday 7 am to 3:30 pm.

Examiner interviews are available via telephone, in-person, and video conferencing using a USPTO supplied web-based collaboration tool. To schedule an interview, applicant is encouraged to use the USPTO Automated Interview Request (AIR) at <http://www.uspto.gov/interviewpractice>.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Terry McKelvey can be reached on (571)272-0775. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see <http://pair-direct.uspto.gov>. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

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/Amy L Clark/

Primary Examiner, Art Unit 1655